

HOUSE BILL NO. 262

INTRODUCED BY L. REKSTEN, M. NIKOLAKAKOS, L. BENNETT, E. TILLEMAN, D. BEDEY, M.
BERTOGLIO, L. JONES, C. KEOGH, M. ROMANO

A BILL FOR AN ACT ENTITLED: "AN ACT ESTABLISHING STATE POLICY ON READING INSTRUCTION;
REQUIRING THAT EARLY LITERACY INSTRUCTION BE EVIDENCE-BASED AND INCLUDE
SCIENTIFICALLY SUPPORTED COMPONENTS; DISALLOWING INEFFECTIVE APPROACHES TO
READING INSTRUCTION; PROVIDING A DEFINITION; AND PROVIDING AN EFFECTIVE DATE."

BE IT ENACTED BY THE LEGISLATURE OF THE STATE OF MONTANA:

NEW SECTION. Section 1. Early literacy instruction -- policy -- instructional requirements. (1)

Affirming that reading and language skills are generally the foundation on which a person's educational potential is developed, the legislature declares that it is the policy of this state that reading instruction is based on literacy strategies that are scientifically researched.

(2) Textbooks, instructional materials, and teaching methods for reading instruction in the public schools of this state may not include instruction related to strategies or approaches that teach students to read based on meaning drawn from context, structure, syntax, visual cues and pictures, or memory, including the instructional model commonly known as the three-cueing system.

(3) Early literacy instruction in the public schools of this state must:

- (a) be evidence-based;
- (b) follow a scope and sequence;
- (c) be direct, systematic, explicit, and responsive; and
- (d) include all of the following:
 - (i) phonics, including decoding and encoding and instruction in writing;
 - (ii) phonemic awareness and phonological awareness;
 - (iii) fluency, including oral language development;
 - (iv) vocabulary; and

1 (v) comprehension, including building background knowledge.

2 (4) As used in this section, "evidence-based" means demonstrating a rationale based on high-
3 quality research findings or positive evaluation that the activity, strategy, or intervention is likely to improve
4 student outcomes or other relevant outcomes and includes ongoing efforts to examine the effects of the activity,
5 strategy, or intervention.

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7 **NEW SECTION. Section 2. Codification instruction.** [Section 1] is intended to be codified as an
8 integral part of Title 20, chapter 7, part 1, and the provisions of Title 20, chapter 7, part 1, apply to [section 1].

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10 **NEW SECTION. Section 3. Effective date.** [This act] is effective July 1, 2025.

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